

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF RICHMOND

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LASUN SOTO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER LOPEZ
TAX ID# 943498, JANE/JOHN DOE POLICE OFFICERS
#1-10,

Defendants.
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Index No.:

Date Purchased:

Plaintiff designates
KINGS County as the
place of trial.

The basis of venue is
The residence of the plaintiff,
LASUN SOTO, 19 Osgood
Avenue, Staten Island, New
York, 10304

SUMMONS

Date Filed: _____

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
October 25, 2020

Yours, etc.,

DAVID A. ZELMAN, ESQ.
709 Eastern Parkway
Brooklyn, New York 11213
(718) 604-3072

Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
Brooklyn, NY 10007

POLICE OFFICER Lopez, Tax # 943498, and
POLICE OFFICERS JOHN/JANE DOE(S) #S 1-10,
all residing at:
120th precinct, 78 Richmond Terrace
Staten Island, New York 10301

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
LASUN SOTO,

Plaintiffs,

COMPLAINT

-against-

PLAINTIFFS DEMAND
TRIAL BY JURY

THE CITY OF NEW YORK,
POLICE OFFICER LOPEZ Tax ID 943498,
JANE/JOHN DOE POLICE OFFICERS #1-10,

Defendants.

-----X
Plaintiffs LASUN SOTO, for his complaint, by his attorney DAVID A. ZELMAN, ESQ.,
and upon information and belief respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. This is a negligence action in which Plaintiff LASUN SOTO seek damages for personal injuries sustained as a result of the defendant's negligence. Plaintiff suffered serious physical injuries and economic damages.

II. PARTIES

2. Plaintiff LASUN SOTO at all times relevant hereto resided in Brooklyn, New York.
3. The CITY OF NEW YORK (hereinafter "CITY") is a municipal entity existing by the laws of the State and City of New York.
4. Defendant POLICE OFFICER LOPEZ, Tax # 943498 (hereinafter "LOPEZ") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of the City of New York and within the scope of his employment. Defendant LOPEZ is sued in his official and individual capacity.

5. Defendants JANE/JOHN DOE POLICE OFFICERS #1-10, (hereinafter "DOE DEFENDANTS") were NYPD police officers, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of the City of New York and within the scope of their employment. Defendant DOES are sued in his official and individual capacity.
6. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities.

III. FACTS

7. On or about May 29, 2020, at approximately 4:00 a.m. defendants executed a warrant at 19 Osgood Avenue, Apt. 1, Staten Island, New York.
8. On or about May 29, 2020, plaintiff was legally present within the apartment located at 19 Osgood Avenue, Apt. 1., Staten Island, New York.
9. On or about May 29, 2020, defendant LOPEZ and/or JANE/JOHN DOE POLICE OFFICERS utilized a heavy metal object to break in the front door of the apartment located at 19 Osgood Avenue, Apt. 1, Staten Island, New York.
10. On or about May 29, 2020, following use of the heavy metal object to break down the front door of the apartment, the heavy metal object was dropped and/or throw to the floor and it impacted plaintiff LASUN SOTO's person causing serious personal injuries.
11. Plaintiff LASUN SOTO, at all times relevant to this action, was not a threat to police officers, was not attempting to escape and had fully complied with the defendant officers demands and/or actions when they physically forced their way into his residence located at 19 Osgood Avenue, Apt. 1, Staten Island, New York and injured him.

12. That heretofore and on the 7th day of June , 2020, Plaintiff's Notice of Claim and Intention to sue was duly served upon and filed with the City of New York; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth Plaintiffs' names, the nature of the claim, the time and place of the incident, the manner in which the claim arose and the items of damage and injuries sustained.
13. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to the City of New York for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

IV. FIRST CAUSE OF ACTION
(NEGLIGENCE)

14. Paragraphs 1 through 13 of this complaint are hereby realleged and incorporated by reference herein.
15. On or about May 29, 2020, Defendants were negligent in the use of the heavy metal object used to break down the apartment door in that the object was used to seriously injure the plaintiff herein despite him not resisting the officers efforts to gain entry to the apartment.
16. That on or about May 29, 2020, defendants were negligent in allowing the heavy metal object to seriously injure plaintiff SOTO.
17. That on or about May 29, 2020, plaintiff was not negligent in any fashion and simply complied with police demands.
18. On or about May 29, 2020, plaintiff maintained no contraband or weapons on his person.
19. On or about May 29, 2020, plaintiff was not a risk to the defendant officers.
20. On or about May 29, 2020, plaintiff did not attempt to escape the defendant officers.
21. By reason of the foregoing, Plaintiff suffered physical injuries and other injuries/damages. All of said injuries may be permanent.

V. SECOND CAUSE OF ACTION
(GROSS NEGLIGENCE/RECKLESSNESS)

22. Paragraphs 1 through 21 are hereby realleged and incorporated by reference herein.
23. That defendants were grossly negligent and/or reckless in allowing the heavy metal object used to break the apartment door to strike the plaintiff's person thereby causing serious personal injuries.
24. That Defendants could have avoided serious personal injuries to the plaintiff and not have thereby placed themselves in undue danger.
25. That at the time of the entry into the apartment located at 19 Osgood Avenue, Apt. 1, Staten Island, New York, SOTO did not pose a threat to the safety of the arresting officers.
26. That SOTO was not actively resisting arrest or attempting to evade arrest.
27. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
28. By reason of the foregoing, SOTO suffered physical injuries, and other damages/injuries. All of said injuries may be permanent

VI. THIRD CAUSE OF ACTION
Pursuant to State Law (RESPONDEAT SUPERIOR)

29. Paragraphs 1 through 28 are hereby realleged and incorporated by reference herein.
30. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.
31. That at all times Defendants were acting within the scope of their employment.
32. That Defendant CITY was able to exercise control over Defendants activities.

33. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, Plaintiffs suffered mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

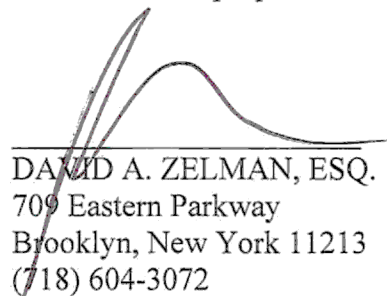
INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, Plaintiff has suffered and will continue to suffer, physical injuries, physical and emotional pain, suffering, inconvenience, loss of enjoyment of life, and other pecuniary and non-pecuniary losses. Plaintiff has further experienced emotional distress.

WHEREFORE, Plaintiffs respectfully request that judgment be entered:

1. Awarding Plaintiffs compensatory damages in a full and fair sum to be determined by a jury;
3. Awarding Plaintiff interest from May 29, 2020 and
5. Granting such other and further relief as to this Court deems proper.

DATED: Brooklyn, New York
October 25, 2020



DAVID A. ZELMAN, ESQ.
709 Eastern Parkway
Brooklyn, New York 11213
(718) 604-3072

ATTORNEY VERIFICATION

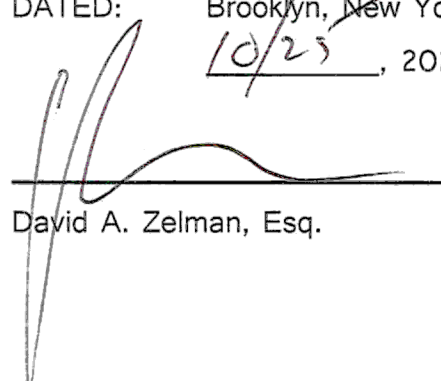
David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing Verified Complaint and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff(s) is that the plaintiff(s) is presently in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation contained in the file.

DATED: Brooklyn, New York
10/23, 2020



David A. Zelman, Esq.